APPROVED ON OCTOBER 14, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION

WEEKLY BUSINESS SESSION - October 7, 2026
9:00 a.m. - Anne G. Basker Auditorium
600 N.W. Sixth Street, Grants Pass, OR 97526

Present: Ron Smith, Chair-Commissioner; Colene Martin, Vice-Chair-Commissioner; Gary Richardson, Commissioner; Nikole Guzman, Recorder

These are meeting minutes only. Only text enclosed in quotation marks reports a speaker's exact words.

Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, called the meeting to order at 9:00 a.m. followed by the Pledge of Allegiance.

Items discussed were as follows:

1. **CALL MEETING TO ORDER: Pursuant to notice through the media and in conformance with the Public Meeting Law, Ron Smith, Chair, called the meeting to order at 9:00 a.m.**
2. **DECLARE A POTENTIAL CONFLICT OF INTEREST: Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest.**
3. **ADMINISTRATIVE ACTION(S) IN CONSIDERATION OF:**

a. Administrative Policy Revision: F-01; Social Media Policy

Thomas Gray, Public Information Coordinator and Records Management Officer, presented the proposed revisions to Administrative Policy F-01. He explained that the County reviewed the policy with Legal Counsel to reflect current law and evolving First Amendment considerations involving government social-media accounts. The revisions clarify acceptable moderation of comments involving spam, harassment, or other content outside the established rules while preserving protected speech, and distinguish responsibilities for accounts operated by elected officials from those operated by County departments.

b. Administrative Policy Revision: F-06; Public Records Policy

Mr. Gray presented the proposed revisions to Administrative Policy F-06, Public Records Policy. He stated that the existing policy required updates to better align with current Oregon public-records law and County practice. The County consulted Oregon Public Records Advocate Todd Albert, whose recommendations were incorporated to improve public access, consistency, and organization in the records-request process.

c. Resolution No. 2026-xxx; In the Matter of Affirming Compliance with State and Federal Law and Requesting That the State of Oregon Address Counties' Federal Funding and False Claims Act Exposure

Wally Hicks, Legal Counsel, presented a draft resolution concerning County compliance with state and federal law and potential exposure under the federal False Claims Act. He explained that the draft was being presented for discussion and public input rather than final action and had not yet been assigned a resolution number. The discussion focused on the County's obligations when accepting federal funds and the potential difficulty created when federal requirements conflict with State of Oregon requirements. Commissioners expressed concern regarding immigration-related federal requirements and Oregon sanctuary-state law and discussed asking the State to provide guidance or protection for counties. The Board indicated the draft would return for further consideration after additional review and public input.

4. **REQUESTS/COMMENTS FROM CITIZENS:** *(Each person will be given three (3) minutes to speak)*

Stephen Fitch, Josephine County resident, thanked the Board for assistance in obtaining records he had requested and stated that he received the records after approximately ten months. He expressed concerns regarding the length of time required to obtain the records, government transparency, due process, and what he characterized as retaliation against citizens who exercise constitutional rights. Mr. Fitch asked the Board to continue emphasizing accountability and timely access to public information.

Judy Ahrens, Josephine County resident, spoke regarding public education, academic fundamentals, patriotism, parental involvement, and school funding requirements. She encouraged citizens to attend local school-board meetings, including an upcoming Three Rivers School District meeting, and to advocate for reading, writing, mathematics, and civic education.

5. BOARD MAY REVIEW PUBLIC COMMENTS/QUESTIONS:

Commissioner Richardson stated that he was pleased the public-records issue described by Mr. Fitch had moved forward and said the County had been working to improve its records-request processes. Regarding education, he discussed District 7's emphasis on reading and noted that public schools must also meet a variety of state and federal program requirements that affect budgeting and priorities.

Commissioner Martin stated that public officials should not use their positions to discriminate or retaliate against citizens and emphasized the Board's responsibility to serve the public and provide clear information. She thanked Mr. Gray for his work on public-records improvements and thanked Ms. Ahrens for her continued advocacy regarding education.

Chair Smith stated that the revisions to the public-records policy reflected the County's effort to listen to public concerns and improve access to information. He also thanked Ms. Ahrens for her continued interest in education and civic involvement.

Commissioner Martin moved to approve Administrative Policy Revision F-01, Social Media Policy. Commissioner Richardson seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

Commissioner Martin moved to approve Administrative Policy Revision F-06, Public Records Policy. Commissioner Richardson seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

6. APPROVAL OF CONSENT CALENDAR:

a. Minutes (draft minutes are available for viewing in the Board's Office)

Executive Meeting – September 28, 2026
Executive Meeting – September 29, 2026
Admin Workshop – September 29, 2026
Weekly Business Session – September 30, 2026
Legal Counsel Update – October 1, 2026
Executive Meeting – October 1, 2026
Executive Meeting - October 2, 2026

Commissioner Richardson moved to approve the Consent Calendar as presented. Commissioner Martin seconded the motion. Upon roll call: Commissioner Richardson - Yes; Commissioner Martin - Yes; Commissioner Smith - Yes. Motion carried 3-0.

7. OTHER MATTERS: *(ORS 192.640(1) ...Commissioners may introduce other matters for consideration by the entire board)*

Commissioner Martin reiterated that the Board was seeking public feedback on the draft resolution concerning state and federal law, federal funding, and False Claims Act exposure. She invited residents to contact the Board by phone, email, or at a public meeting before the matter returned for further consideration.

Chair Smith concurred and stated that the Board wanted clearer guidance regarding the County's position when state and federal requirements conflict. He said the Board looked forward to reviewing a final draft after receiving additional input.

8. ANNOUNCEMENTS: *(Commissioners may discuss any topic of interest to the general community)*

Commissioners Richardson and Martin reported no announcements. Chair Smith reported no additional announcement and wished those in attendance a good day.

Weekly Business Session adjourned at 9:21 a.m.

Nikole Guzman, Recorder